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SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

25STCV17032

ROBERT

CROWELL vs ONE ELECTRIC LLC

August

12, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANT'S MOTION FOR AN ORDER COMPELLING PLAINTIFF ROBERT CROWELL TO PROVIDE

RESPONSES TO PLAINTIFF'S FORM INTERROGATORIES SET NO. TWO. DEFENDANT'S MOTION FOR AN ORDER COMPELLING

PLAINTIFF ROBERT CROWELL TO PROVIDE FURTHER RESPONSES TO DEFENDANT'S SPECIAL

INTERROGATORIES, SET NO. TWO AND IMPOSING MONETARY SANCTIONS IN THE AMOUNT OF \$3,360.00, JOINTLY AND SEVERALLY, AGAINST PLAINTIFF AND PLAINTIFF'S COUNSEL. DEFENDANT'S MOTION FOR AN ORDER COMPELLING PLAINTIFF ROBERT CROWELL TO PROVIDE FURTHER RESPONSES TO DEFENDANT'S REQUESTS FOR ADMISSIONS, SET NO. TWO AND IMPOSING MONETARY SANCTIONS IN THE AMOUNT OF \$5,600.00, JOINTLY AND SEVERALLY, AGAINST PLAINTIFF AND PLAINTIFF'S COUNSEL.

RULING:

The Court grants the Motion to Compel Further Responses to Form Interrogatories, set number two, limited to 70 Admission Request items pursuant to the June 30, 2026 Protective Order.

The Court denies the Motion to Compel Further Special Interrogatories, set number two, pursuant to the waiver stated in that Protective Order.

The Court grants the Motion to Compel Further Responses to Requests for Admissions, set number two, limited to 70 items pursuant to the same Protective Order.

The Court denies all sanctions requests, it finding substantial justification for some opposing positions, primarily related to the partially granted Protective Order.

On or before September 11, 2026, Plaintiff ROBERT CROWELL shall serve initial responses, without objections, and in full compliance with the California Discovery Act (Code Civ. Proc. § 2016.010 et seq.), as to Defendant's Form Interrogatory number 17.1, and code-compliant responses, without objections, to Defendant's 70 selected Requests for Admissions.

Defendant to give notice.

I.

BACKGROUND

On June 12, 2025, ROBERT CROWELL (Plaintiff) filed a Complaint against ONE ELECTRIC, LLC (Defendant),

listing Causes of Action for:

1. WRONGFUL TERMINATION IN VIOLATION
OF PUBLIC POLICY
2. DISABILITY DISCRIMINATION IN
VIOLATION OF FAIR EMPLOYMENT AND HOUSING ACT
3. FAILURE TO ENGAGE IN GOOD FAITH
INTERACTIVE PROCESS IN VIOLATION OF FAIR EMPLOYMENT AND HOUSING ACT
4. FAILURE TO PROVIDE REASONABLE
ACCOMMODATION IN VIOLATION OF FAIR EMPLOYMENT AND HOUSING ACT
5. RETALIATION IN VIOLATION OF THE
FAIR EMPLOYMENT AND HOUSING ACT
6. FAILURE TO PREVENT DISCRIMINATION
AND RETALIATION IN VIOLATION OF FAIR EMPLOYMENT AND HOUSING ACT.

Plaintiff alleges that Defendant
wrongfully terminated his employment as a chief electrical estimator, instead
of engaging in the interactive process and providing reasonable accommodations after
Plaintiff's stent procedure and vascular surgery.

On June 30, 2026, the
Court entered a Minute Order, nunc pro tunc, at page 5 granting Plaintiff's
Motion for Protective Order, as follows: "Defendant shall select 70 maximum
Requests for Admissions, out of the subject discovery, and serve a Notice
thereof upon Plaintiff, such that Plaintiff is informed of which item numbers
to serve responses to, which responses Plaintiff shall serve within 30 days
after such notice. [¶] The Motion is otherwise denied." That Order is not modified
in any way by statute or by Defendant's prior discovery requests or Plaintiff's
prior discovery responses. There is an absolute limit of 70 Requests for
Admission.

On June 17, 2026, Defendant
filed three discovery Motions to compel further responses to (1) Form
Interrogatories, (2) Special Interrogatories, and (3) Requests for Admission.
Defendant also requests monetary sanctions, as to the second and third motions.

Plaintiff opposes, based upon counterarguments such as that the Protective Order has limited the Requests for Admissions to 70, as related to Form Interrogatory 17.1, and has ordered waived the Special Interrogatories.

II.

LEGAL STANDARD

Where respondents object or respond inadequately to discovery requests, a motion lies to compel further responses, as to which respondent has the burden to justify the objections. (*Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255; Code Civ. Proc., §§ 2030.300, subd. (a) [motion to compel further responses lies “[o]n receipt of a response to interrogatories....”]; and 2031.310, subd. (a) [motion to compel further responses lies “[o]n receipt of a response to an inspection demand....”].) A propounding party’s remedy when it deems objections in discovery responses to be without merit is to move for an order compelling further responses. (*Catalina Island Yacht Club v. Superior Court* (2015) 242 Cal.App.4th 1116, 1127.)

Monetary

discovery sanctions are mandatory as to parties losing discovery motions, unless courts find substantial justification or other injustice. (*Deck v. Devs. Inv. Co.* (2023) 89 Cal.App.5th 808, 830.) “[T]he phrase “substantial justification” has been understood to mean that a justification is clearly reasonable because it is well grounded in both law and fact.” (*Kwan Software Engineering, Inc. v. Hennings* (2020) 58 Cal.App.5th 57, 75.) “If the party seeking a monetary sanction meets its burden of proof, the burden shifts to the opposing party attempting to avoid a monetary sanction to show that it acted with ‘substantial justification.’” (*Doe v. U.S. Swimming, Inc.* (2011) 200 Cal.App.4th 1424, 1435.) Courts may determine substantial justification based on the “whole picture” of the discovery dispute, including where parties partially prevailed as to some discovery items in dispute, or where discovery concessions occurred only after improperly asserted objections. (*In re Marriage of Moore* (2024) 102 Cal.App.5th 1275, 1297.)

III.

ANALYSIS

Defendant advocates an Order compelling Plaintiff’s initial Form Interrogatory responses and further

responses without objections to Special Interrogatories and Requests for Admission, and imposing monetary sanctions.

Plaintiff advocates continuing or ruling on the Motions, in accordance with the Protective Order. Plaintiff also argues against sanctions, asserting that there is substantial justification for the discovery responding and opposing positions.

A. Form Interrogatories

Defendant requests an Order compelling Plaintiff to serve an initial verified response to Form Interrogatory No. 17.1, without objections, as to the 70 selected Requests for Admissions, and also numbers 47, 128, 138, 142, 154, 169, and 195, which Defendant contends are unaffected by the Protective Order.

Plaintiff maintains that Form Interrogatory No. 17.1 is derivative of the Requests for Admission that have been limited to 70.

If interrogatory responses lack specificity, then parties may move to compel further responses under Code of Civil Procedure section 2030.300, subdivision (a), providing for motions to compel, where parties deem that an answer is evasive, incomplete, or inadequate as to specification of documents. (*Best Products, Inc. v. Superior Court* (2004) 119 Cal.App.4th 1181, 1190.) “While the party propounding interrogatories may have the burden of filing a motion to compel if it finds the answers it receives unsatisfactory, the burden of justifying any objection and failure to respond remains at all times with the party resisting an interrogatory.” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 541.)

Parties failing to serve timely responses to discovery requests waive any objections thereto. (*Pelton v. Delta Packaging Prods.* (2008) 165 Cal.App.4th 1658, 1577, fn.13; *Sinaiko Healthcare Consulting, Inc. v. Pac. Healthcare Consultants* (2007) 148 Cal.App.4th 390, 404. Courts, on motion, may relieve parties from waivers of discovery objections caused by late responses, if parties subsequently have served responses in substantial compliance with applicable statutory provisions, and their failures resulted from mistake, inadvertence, or

excusable neglect. (Pelton v. Delta Packaging Prods. (2008) 165 Cal.App.4th 1568, 1577, fn.13 [citing Code Civ. Proc., § 2031.300]; Sinaiko Healthcare Consulting, Inc. v. Pac. Healthcare Consultants (2007) 148 Cal.App.4th 390, 407.) Parties may obtain protective orders even after waiving discovery objections. (Stadish v. Superior Court (1999) 71 Cal.App.4th 1130, 1144 [addressing documents responses].)

Admission requests and

Judicial Council Form Interrogatory number 17.1 together require respondents to state all facts that support the contentions. (Union Bank v. Superior Court (1995) 31 Cal.App.4th 573, 580.) Form Interrogatory number 17.1 is a contention interrogatory. (See, *ibid.* [“Those admissions requests and Judicial Council form interrogatory number 17.1 required plaintiffs to state all of the facts which supported the contention....”].)

Here, the Court finds

that number 17.1 must be initially answered, by addressing only the 70 Requests for Admissions Defendant selected, and that all potential discovery objections have been waived by Plaintiff’s not timely serving responses, but subject to a possible Motion for Relief from Waivers. While the Protective Order did not directly affect number 17.1, by design it is interrelated with the Requests for Admissions, which here are limited to 70.

B. Special

Interrogatories

Defendant requests an Order

compelling Plaintiff to serve verified, code-compliant, further responses to Special Interrogatories numbers 79, 89, 92, 98, 104, 108, 111, 112, 114, 115, 119, 121, 130, 137, and 151, and opines that the Protective Order has had no effect on this Motion.

Plaintiff counterargues

that Defendant expressly waived the Special Interrogatories at the hearing about the Protective Order.

“The same rules apply in

ascertaining the meaning of a court order or judgment as in ascertaining the

meaning of any other writing.” (Mendly v. County of L. A. (1994) 23 Cal.App.4th 1193, 1205.) Courts have the inherent power to correct clerical errors in their records to reflect the true facts, even pending an appeal, on its own motion, at any time. (People v. Mitchell (2001) 26 Cal.4th 181, 185.)

Courts may accept representations of attorneys as being the equivalent of a binding stipulation. (Roman v. Liberty University, Inc. (2008) 162 Cal.App.4th 670, 683.) “[A]n oral statement by counsel in the same action is a binding judicial admission if the statement was an unambiguous concession of a matter then at issue and was not made improvidently or unguardedly.” (Fassberg Constr. Co. v. Hous. Auth. of City of Los Angeles (2007) 152 Cal.App.4th 720, 752.)

Estoppel in litigation occurs where a party's statement intentionally led another to believe a particular thing true and to act upon such belief. (State Compensation Ins. Fund v. Workers' Comp. Appeals Bd. (1985) 40 Cal.3d 5, 16; Padron v. Osoy (2025) 110 Cal.App.5th 677, 691; Evid. Code § 623 [“Whenever a party has, by his own statement or conduct, intentionally and deliberately led another to believe a particular thing true and to act upon such belief, he is not, in any litigation arising out of such statement or conduct, permitted to contradict it.”].) A party to a stipulation is conclusively estopped from taking a position contrary to a stipulation in the litigation. (Palmer v. City of Oakland (1978) 86 Cal.App.3d 39, 44.) “By expressly consenting ... an appellant acquiesces in it and thereby loses the right to attack the error on appeal.” (Stebbins v. White (1987) 190 Cal.App.3d 769, 782.) “It is a fundamental rule of appellate procedure that an order will not be disturbed on an appeal prosecuted by a consenting party. A stipulation is a consent within the meaning of this rule.” (Bowden v. Green (1982) 128 Cal.App.3d 65, 72.)

Here, the Court unequivocally ordered that all Special Interrogatories were waived, without any exceptions or refinements, pursuant to defense counsel's statement at the June 30, 2026 hearing. Such ruling and statements are binding upon Defendant.

Therefore, the Motion to Compel Responses to Special Interrogatories is denied entirely.

C. Requests
for Admissions

"Defendant ... seeks verified further responses only to RFA Nos. 47, 128, 138, 142, 154, 169, and 195. Each asks Plaintiff to admit the genuineness of an attached document that he signed, provided, received, or was sent. Section 2033.030, subdivision (a), expressly excludes requests concerning document genuineness from the numerical limit applicable to other RFAs, and the Court did not decide these seven requests." (Reply, 2:15-20.) Additionally, Defendant argues in favor of monetary sanctions, partly because Plaintiff was not substantially justified for repeating the same objections and avoiding substantive responses.

Plaintiff argues that Defendant's Motion has been procedurally superseded by the Protective Order, necessitating a revised Motion addressing Requests for Admissions reduced to 70 total.

Where respondents timely responded to requests for admissions, requesting parties may move to compel further answers based upon a showing of some deficiency. (*Wimberly v. Derby Cycle Corp.* (1997) 56 Cal.App.4th 618, 636; Code Civ. Proc., § 2033.290.)

A response to a request for admission must be an admission, denial or statement of inability to admit or deny. (Code Civ. Proc., § 2033.220, subd. (b).) Respondents must admit the part of an admission request that is true (as expressed in the request, or as reasonably and clearly qualified), deny the part that is untrue, and specify the part as to which the responding party lacks sufficient information. (Code Civ. Proc., § 2033.220, subd. (b); *Applera Corp. v. MP Biomedicals, LLC* (2009) 173 Cal.App.4th 769, 778-779, fn.5.) Where a response indicates an inability to admit or deny a request for admission, the responding party must also state that a reasonable inquiry was made as to information known or readily obtainable to obtain sufficient information. (Code Civ. Proc., § 2033.220, subd. (c).) "It has been said that a denial of all or portion of the request must be unequivocal." (*American Federation of State, County & Municipal Employees v. Metropolitan Water Dist.* (2005) 126 Cal.App.4th 247, 268.) Requests for admissions may require respondents to apply laws to facts or state opinions related to facts. (*Garcia v. Hyster Co.*

(1994) 28 Cal.App.4th 724, 735; Miller v. American Greetings Corp. (2008) 161 Cal.App.4th 1055, 1066.) “[W]hen a party is served with a request for admission concerning a legal question properly raised in the pleadings he cannot object simply by asserting that the request calls for a conclusion of law.” (Joyce v. Ford Motor Co. (2011) 198 Cal.App.4th 1478, 1488.)

Further, where general boilerplate objections were made, courts have authority to compel further responses. (Best Products, Inc. v. Superior Court (2004) 119 Cal.App.4th 1181, 1189.)

Here, the Court finds that Plaintiff must serve code-compliant responses to the 70 Requests for Admission numbers that Defendant selects, whether or not that 70 total includes numbers 47, 128, 138, 142, 154, 169, and 195. Further, the Court overrules all discovery objections in Plaintiff’s response, the Court finding that those were grossly overbroad, boilerplate objections, and that there is no substantial justification for failures to provide the substantive responses authorized by the California Discovery Act.

IV.

CONCLUSION

The Court partially grants the Motions regarding Form Interrogatories and Requests for Admissions, as specified herein. The Court denies the Motion to Compel Further Responses to Special Interrogatories, and all sanctions requests.